

		The Borrego Springs Watermaster moves to amend the judgment entered April 8, 2021 (ROA 338). No oppositions have been filed. For the following reasons, the Watermaster’s motion is granted. The Watermaster moves to amend the Groundwater Management Plan (GMP) attached as Exhibit 1 to the judgment to address seven “recommended correction actions” (RCAs) from the California Department of Water Resources (DWR) and to incorporate new data and information that has become available since the initial GMP. In June 2026, the Watermaster Board of Directors unanimously approved the Five Year Assessment and the 2026 GMP Update, which were submitted to DWR pursuant to Water Code section 10733.6(c) and DWR’s February 25, 2025 approval. Adams Decl. (ROA 687) ¶ 13. Pursuant to Code of Civil Procedure section 852, the court has continuing jurisdiction to modify or amend a final judgment “in response to new information, changed circumstances, [or] the interests of justice.” Section VII.A of the judgment states the court has “full jurisdiction, power and authority . . . to make such further or supplemental orders or directions as may be necessary or appropriate for . . . the modification, amendment or amplification [of] any of the provisions of this Judgment, or to add to the provisions hereof, consistent with the rights herein decreed.” Judgment (ROA 338) (Part 1, at 46). The Watermaster has demonstrated that the GMP attached as Exhibit 1 to the judgment should be amended as set forth in the 2026 GMP Update (ROA 686 (Ex. 1)). Adams Decl. (ROA 687) ¶¶ 4-13. The GMP attached as Exhibit 1 to the judgment (ROA 338) is amended as set forth in the 2026 GMP Update attached as Exhibit 1 to ROA 686. The Watermaster is ordered to give notice. <u>Status Conference</u> The court has reviewed the parties’ joint status conference statement filed September 2, 2026 (ROA 696), and based thereon continues the September 10, 2026 status conference to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
4	Carter v. Quantum Fuel Systems LLC 2023-01334066	Off calendar.
5	Carter v. Quantum Fuel Systems LLC 2024-01378128	Off calendar.

6	Cervantes v. Goton Tiles, Inc. 2024-01423863	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> Plaintiff Jennifer Cervantes moves for preliminary approval of a class action and PAGA settlement. Plaintiff's counsel states the settlement agreement is attached as Exhibit 1 to counsel's declaration. Robinson Decl. (ROA 62) ¶ 2. Exhibit 1 to counsel's declaration is the proposed class notice. The court has been unable to locate the settlement agreement in plaintiff's motion papers or elsewhere in the court file. Because plaintiff has not submitted a copy of the settlement agreement to the court, the court lacks sufficient information to evaluate the settlement. Plaintiff's motion for preliminary approval is denied without prejudice. Clerk to give notice.
7	Corral v. JMW Cabinets, Inc. 2024-01376239	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$100,000 PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The "Released Parties" provision in paragraph 1.27 of the settlement agreement is overbroad. It includes ambiguous, unidentified and/or unrelated third parties such as "insurers," "affiliates," "entities (including those entities named as respondents and/or defendants in Plaintiff's LWDA letters or the Action)," "agents, attorneys, administrators, and representatives." 3. When is the aggrieved employees release effective? Settlement Agreement ¶ 5. The court will not require the aggrieved employees to release claims until defendant has fully funded the settlement. 4. The "Released PAGA Claims" provision in paragraph 5 is overbroad. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties